

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Arreaga	Team: Squad #06	CCRB Case #: 201700410	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/05/2016 12:15 AM	Location of Incident: Olinville Avenue and East Gunhill Road	18 Mo. SOL 4/5/2018	Precinct: 47		
Date/Time CV Reported Wed, 01/18/2017 11:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/18/2017 11:37 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Shawn Morris	10616	955222	047 PCT
2. POM Angel Lopez	18194	958827	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Shawn Morris	Discourtesy: At Olinville Avenue and Gun Hill Road in the Bronx, Police Officer Shawn Morris spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Angel Lopez	Abuse: At Olinville Avenue and Gun Hill Road in the Bronx, Police Officer Angel Lopez frisked § 87(2)(b)	B . Exonerated
C . POM Shawn Morris	Abuse: At Olinville Avenue and Gun Hill Road in the Bronx, Police Officer Shawn Morris searched the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Shawn Morris	Discourtesy: En route to the 47th Precinct stationhouse, Police Officer Shawn Morris spoke discourteously to § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 18, 2017, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board (CCRB) via telephone.

On October 5, 2016, at approximately 12:48 a.m., Police Officers Shawn Morris and Angel Lopez of the 47th Precinct stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants on the corner of Olinville Avenue and Gun Hill Road in the Bronx, for a suspended vehicle registration. As the officers approached § 87(2)(b)'s vehicle, they smelled a distinct odor of marijuana. Police Officer Morris ordered § 87(2)(b) several times to exit his vehicle. § 87(2)(b) refused to comply. Police Officer Morris opened the driver's side door while stating, "Do you see it. Fucking open the door" (**Allegation A**). Police Officer Morris placed his hands on § 87(2)(b)'s shoulders and removed him out of the vehicle. § 87(2)(b) held onto the steering wheel to resist being removed. Police Officer Morris allegedly stated, "Now I fucking got him. Now I got an arrest" as § 87(2)(b) exited the vehicle (**within Allegation A**). § 87(2)(b) was placed under arrest. Police Officer Lopez ordered § 87(2)(b) to exit the vehicle and proceeded to frisk § 87(2)(b)'s pockets and waistband area (**Allegation B**). § 87(2)(b) was not arrested or issued a summons and was permitted to leave the location. Police Officer Morris searched § 87(2)(b)'s vehicle and found a bud of marijuana in the front center console and a one-pint bottle of Promethazine with codeine syrup in the back passenger cup holder (**Allegation C**). § 87(2)(b) was placed in a police vehicle and transported to the 47th Precinct stationhouse.

While en route to the 47th Precinct stationhouse, Police Officer Morris allegedly told § 87(2)(b) "You want to be a dickhead, well [Ima] be a dickhead too" (**Allegation D**). § 87(2)(b) was issued summons #§ 87(2)(b) for § 87(2)(b) (Board Review 01). § 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

Video Footage

§ 87(2)(b) a private investigator for § 87(2)(b) provided video footage recorded by § 87(2)(b) during this incident. The video footage shows what occurred while § 87(2)(b) and § 87(2)(b) were inside of the vehicle and does not capture what took place once § 87(2)(b) was removed from the vehicle. The entire video can be viewed in IAs #52-55 (Board Reviews 02-05). § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to § 87(2)(b)'s arrest with no DAT issued.
 - According to the NYC Comptroller's Office, as of February 7, 2017, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim regarding this incident (Board Review 06).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(g)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- [§ 87(2)(b)] has one prior CCRB complaint (Board Review 09).
 - [§ 87(2)(b)]
- [§ 87(2)(b)] has no prior CCRB complaints.
- Police Officer Morris has been a member of the NYPD for three years and has three allegations in two cases with no substantiated allegations (see officer history).
- Police Officer Lopez has been a member of the NYPD for one year and has no prior CCRB complaint. He is currently involved in open CCRB case #201609271 (see officer history).

Potential Issues

- The CCRB was unable to obtain a statement from [§ 87(2)(b)] a victim in this incident. On January 30, 2017, [§ 87(2)(b)] stated that he did not want to participate in the complaint.

Findings and Recommendations

Explanation of Subject Officer Identification

On January 18, 2017, [§ 87(2)(b)] provided an intake phone statement. On January 24, 2017, [§ 87(2)(b)] was interviewed at the CCRB (Board Review 10) and he provided a follow-up phone statement on January 31, 2017 (Board Review 11). [§ 87(2)(b)] described the officer who removed him from the vehicle as a black male with light skin, 5'10" – 5'11" tall, 170 – 175 pounds, in his late 20s, and in a navy blue uniform. [§ 87(2)(b)] described this officer's partner as a possibly Hispanic male with light skin and in a navy blue uniform.

An MOS photo and pedigree sheet shows that Police Officer Morris is a black male with light skin, 5'10" tall, and 190 pounds. On February 16, 2017, Police Officer Morris was interviewed at the CCRB (Board Review 12). He confirmed that he and Police Officer Lopez stopped [§ 87(2)(b)]'s vehicle. Police Officer Morris acknowledged removing [§ 87(2)(b)] from the vehicle, placing him under arrest, and transporting him back to the 47th Precinct stationhouse. [§ 87(2)(g)]

On February 23, 2017, Police Officer Lopez was interviewed at the CCRB (Board Review 13), and re-interviewed on March 9, 2017 (Board Review 14). He acknowledged to frisking [§ 87(2)(b)] [§ 87(2)(g)]

Allegations not pleaded

- [§ 87(2)(g)]

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A – Discourtesy: At Olinville Avenue and Gun Hill Road in the Bronx, Police Officer Shawn Morris spoke discourteously to § 87(2)(b)

§ 87(2)(g) [REDACTED]
§ 87(2)(b) did not make any discourtesy allegations while at the incident location (Board Reviews 10 and 11).

Video footage for this incident shows Police Officer Morris attempting to open the driver’s side door of § 87(2)(b)’s vehicle. He instructs § 87(2)(b) to open the door. Police Officer Morris is then heard stating, “Do you see it, fucking, open the door.”



201700410_20170306_1540_DM.mp4

§ 87(2)(b) a private investigator for § 87(2)(b) stated that while speaking with § 87(2)(b) on his cell phone he overheard Police Officer Morris state, “Now I fucking got him, now I got an arrest” (Board Review 15).

Police Officer Morris did not recall using any profanity throughout the incident (Board Review 12). He did not recall stating “Now I fucking got an arrest.” When presented with the video footage regarding this incident, Police Officer Morris confirmed he was the officer seen standing on the driver’s side door and confirmed it was his voice heard saying “open the door.” When asked to explain in what context he had used the word “fucking” prior to stating “open the door,” Police Officer Morris reiterated that he did not recall using any profanity.

Police Officer Lopez was unable to hear the conversation between § 87(2)(b) and Police Officer Morris since he was standing by the passenger’s side door (Board Review 13).

§ 87(2)(g) [REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that Allegation A be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: At Olinville Avenue and Gun Hill Road in the Bronx, Police Officer Angel Lopez frisked § 87(2)(b)

Allegation C – Abuse of Authority: At Olinville Avenue and Gun Hill Road in the Bronx, Police Officer Shawn Morris searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Lopez frisked § 87(2)(b) and that PO Morris searched § 87(2)(b) s vehicle for marijuana.

§ 87(2)(b) stated that as he stood near the trunk of his vehicle he overheard PO Lopez, who was standing near the front passenger's side door, ask § 87(2)(b) to exit the vehicle (BR 10 and 11). § 87(2)(b) was brought to the trunk of the vehicle and stood to the left of § 87(2)(b). § 87(2)(b) saw PO Lopez frisk the exterior of § 87(2)(b) s clothing. § 87(2)(b) confirmed that PO Lopez questioned him in regards to when the last time it was that he smoked in the vehicle. § 87(2)(b) responded that he does not smoke in the vehicle. After being told to exit the vehicle, § 87(2)(b) questioned PO Lopez as to what probable cause he had to order him out of the vehicle. It was at this point, that PO Lopez told § 87(2)(b) that he smelled marijuana. § 87(2)(b) later stated that PO Lopez did not say the he smelled marijuana. § 87(2)(b) stated that his windows were rolled up.

As he stood near the trunk with his back to the vehicle, § 87(2)(b) was able to hear PO Morris opening and closing the vehicle doors but was unable to see where he searched due to § 87(2)(b) s where he was positioned (BR 10 and 11).

As previously explained, § 87(2)(b) did not provide a statement as he did not want to participate in the investigation.

PO Lopez stated that when he approached § 87(2)(b) s vehicle, after stopping him for the vehicle infraction, the driver and passenger windows were rolled all the way down and there was a distinct and strong odor of marijuana emanating from inside of the vehicle (BR 13 and 14). PO Morris conversed with § 87(2)(b) as PO Lopez's attention was diverted to § 87(2)(b) who was videotaping him on his cell phone. Following PO Morris' instruction to § 87(2)(b) to exit the vehicle, PO Lopez instructed § 87(2)(b) to exit the vehicle as well. The request for § 87(2)(b) to exit the vehicle was due to the odor of marijuana and given that a vehicle search was going to be conducted.

PO Lopez acknowledged frisking § 87(2)(b). He did not recall what § 87(2)(b) was wearing on the incident date aside from sweatpants and did not observe any bulges on his person as he was seated in the vehicle. Aside from holding a cell phone to videotape the officers, PO Lopez did not observe § 87(2)(b) take any actions that caused him to fear for his safety. He did not initially suspect that § 87(2)(b) had any weapons on his person. However, after observing PO Morris engage in a struggle to remove § 87(2)(b) from the vehicle, PO Lopez believed that either § 87(2)(b) or § 87(2)(b) could have had a weapon on their person or in the vehicle that would have injured the officers. PO Lopez ordered § 87(2)(b) to exit the vehicle. He did not observe any bulges anywhere on § 87(2)(b) s person while he stood outside of the vehicle. § 87(2)(b)

§ 87(2)(b) placed his hands on the vehicle. PO Lopez frisked § 87(2)(b)'s front and back sweatpants pocket and his waistband area for his safety. No weapons were recovered from the frisk.

PO Lopez acknowledged that PO Morris searched § 87(2)(b)'s vehicle (BR 13 and 14). He explained that given the strong odor coming from within § 87(2)(b)'s vehicle the officers had probable cause to search it. PO Lopez stood behind PO Morris and was able to see a one-pint bottle of Promethazine with codeine syrup in the cup holder in the back center console. PO Morris later informed PO Lopez at the stationhouse that he had found marijuana in the front center console.

PO Morris did not see PO Lopez frisk § 87(2)(b) as he was focused on § 87(2)(b) during the incident (BR 12). PO Morris acknowledged searching § 87(2)(b)'s vehicle (BR 12). He stated that when he first approached § 87(2)(b)'s vehicle he saw an "odd looking bottle" in the back passenger's cup holder. Upon reaching the driver's side window, he could smell a strong odor of marijuana coming from within the vehicle which smelled as if it had recently been put out. § 87(2)(b) did admit during the incident that there was marijuana previously in the vehicle but did not state at what point he was smoking. PO Morris did not recall if § 87(2)(b) showed any physical signs of having recently smoked anything. PO Morris explained that given the strong of odor of marijuana coming from within the vehicle, he intended to search the vehicle for marijuana. After placing § 87(2)(b) under arrest, PO Morris entered the vehicle through the driver's side door where he saw a loose bud of marijuana in the front center console in plain view. He found the "odd looking bottle" he had previously noticed which turned out to be a one-pint bottle of Promethazine with codeine syrup found in plain view in the back passenger cup holder.

§ 87(2)(g)

Video footage for this incident shows a conversation between PO Morris, § 87(2)(b), § 87(2)(b) and § 87(2)(b) and § 87(2)(b) ask PO Morris what was his probable cause for pulling them over. PO Morris responds that he smells marijuana in the vehicle.



201700410_20170307_1038_DM.mp4

When an officer detects the odor of marijuana emanating from a vehicle during a lawful vehicle stop, they have probable cause to search the vehicle and its occupant(s) for drugs, People v. Smith, 66 A.D.3d 514, (2009) (BR 27). Officers may search and arrest when they have probable cause to believe that a crime has been committed and the individual to be arrested committed the crime, People v. DeBour, 40 N.Y.2d 210, (1976) (BR 28). The smell of marijuana smoke alone is sufficient to provide police officers with probable cause to search an automobile and its occupants, People v. Chestnut, 43 A.D.2d 260 (1974) (BR 26). The police may stop an automobile and frisk its occupants when they have a reasonable suspicion of criminal activity. People v. Jackson 175 A.D.2d 751, (1991) (BR 25). The court held that police may stop an automobile and frisk its occupants when they have a reasonable suspicion of criminal activity, People v. Ulerio, 1 Misc.3d. 901, (2003) (BR 24).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED] it is recommended that **Allegations B and C be Exonerated.**

Allegation D – Abuse of Authority: En route to the 47th Precinct stationhouse, Police Officer Shawn Morris spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that while he was in the police vehicle, he asked Police Officer Morris why he had arrested him (Board Reviews 10 and 11). Police Officer Morris responded that § 87(2)(b) did not want to exit his vehicle and told him, “You want to be a dickhead; I’ll be a dickhead too.”

Police Officer Morris did not recall using any profanity towards § 87(2)(b) throughout the incident (Board Review 12). He did not recall calling § 87(2)(b) a “dickhead” while inside of the police vehicle.

Police Officer Lopez stated that an additional unit was called to the location which transported § 87(2)(b) back to the stationhouse. He was unable to identify which officers responded to the location. Police Officer Lopez drove § 87(2)(b)’s vehicle back to the stationhouse while Police Officer Morris drove the police vehicle with license plate readers back to the stationhouse (Board Reviews 13 and 14).

Although § 87(2)(b) alleged that Police Officer Morris spoke discourteously towards him, Police Officer Morris did not recall doing so. Police Officer Lopez testified that Police Officer Morris was not in the vehicle that transported § 87(2)(b) back to the stationhouse.

§ 87(2)(g)

[REDACTED] It is therefore recommended that Allegation D be closed as **unsubstantiated.**

§ 87(4-b), § 87(2)(g)

[REDACTED]

§ 87(4-b), § 87(2)(g)

[Redacted text block]

Squad: 6

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date